

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505646	FLETCHER VS RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC	MOTION TO COMPEL DEFENDANT RIVERSIDE HEALTHCARE & WELLNESS CENTRE, LLC D/B/A ALTA VISTA HEALTHCARE & WELLNESS CENTRE'S FURTHER

Tentative Ruling: GRANT

PROOF OF SERVICE: Proper

The operative TAC asserts causes of action for:

- (1) Statutory Violation of California's Elder and Dependent Adult Civil Protection Act (Wel. & Instit. Code § 15600 et seq.)
- (2) Violation of the Patient's Bill of Rights/Health & Safety Code § 1430
- (3) Professional Negligence
- (4) Negligence
- (5) Wrongful Death

On July 17, 2025, Plaintiffs served Alta Vista with Special Interrogatories ("SROGs"), Set two and Request for Production ("RFPs"). (Bristow Decl., ¶2, Exh. 1.) On March 30, 2026, Alta Vista served verified responses. (*Id.* at ¶3, Exh 2.)

Plaintiffs now move to compel further responses to Plaintiffs' SROGs and RFPs. Plaintiffs contend the responses are evasive and incomplete, that the objections are too general and lack merit, and the exercise of the option to produce documents under Code of Civil Procedure section 2030.230 is unwarranted.

In opposition, as to the SROGs, Alta Vista (or Defendant) contends the information sought is protected by the Health Insurance Portability and Accounting Act ("HIPAA"), the California Constitution and California's Confidentiality of Medical Information Act of 1981 (Civil Code §§56 et seq., "CMIA"). Further, the definition of "Responsible Person" used in SROG No. 29 is not applicable to a skilled nursing facility such as Alta Vista. Defendant argues that since propounding discovery, Plaintiffs' case has transformed rendering the discovery moot. As to the RFPs, Evidence Code sections 1157 and 1151 prevent compelling production of the documents requested.

In reply, as to the SROGs, Plaintiffs argue the mootness argument is a red herring, that the requested information is not medical information under HIPAA or CMIA. As to the RFP, Plaintiff points out Defendant failed to meet its burden in invoking the privilege under Evidence Code section 1157. Plaintiff argues Evidence Code section 1151 does not bar discovery.

Trial is not currently set.

A motion to compel further response “shall be accompanied by a **meet and confer** declaration under Section 2016.040.” (Code Civ. Proc., §§ 2030.300, subd. (b)(1) [interrogatories], 2031.310, subd. (b)(2) [request for production], and 2016.040.) A meet and confer declaration “shall state facts showing a reasonable and good faith attempt, either **in person, by telephone, or by videoconference**, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040, subd. (a), emphasis added.) The meet and confer requirement “are designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order.” (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1435.) It requires “a serious effort at negotiation and informal resolution,” including attempts by counsel “to talk the matter over, compare their views, consult, and deliberate.” (*Id.* at 1438-1439.) The parties here complied and met and conferred via telephone. (Bristow Decl., ¶15.)

A party may file a motion compelling a further response to requests for production if it finds that a response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) In a **motion to compel** a further response as to document requests, the moving party must state facts demonstrating good cause justifying the discovery sought by demonstrating relevance and specific facts justifying discovery. (Code Civ. Proc., §2031.310, subd. (b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) The burden to show good cause for production “is met simply by a fact-specific showing of relevance.” (*Tbg Ins. Servs. Corp. v. Superior Court* (2002) 96 Cal.App.4th 443, 448.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

A motion to compel lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (Code Civ. Proc., § 2030.300; see *Best Products, Inc. v. Sup. Ct.* (2004) 119 Cal.App.4th 1181, 1189-1190 – motion to compel proper to challenge “boilerplate” responses.)

If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure fully to answer the discovery requests. (*Coy v. Sup. Ct.* (1962) 58 Cal.2d 210, 220–21; *Fairmont Ins. Co. v. Sup. Ct.* (2000) 22 Cal.4th 245, 255.) “Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the permits,” (Code Civ. Proc., § 2030.220, subd. (a).) “If an interrogatory cannot be answered completely, it shall be answered to the extent possible.” (*Id.* at § 2030.220, subd. (b).) “If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information...” (*Id.* at § 2030.220, subd. (c).) The burden is on responding party to justify any objection or failure to provide a complete response. (*Fairmont Ins. Co., supra*, 22 Cal.4th at 255.)

The motion for order to compel further responses must be served within 45 days of service of verified responses, plus the additional time if not personally served. (Code Civ. Proc., §§ 2030.300, subd. (c), 1010.6, subd. (a)(4); 1013.) If the responses are

objections only, they are treated as verified responses with respect to the 45-day limit, but if the responses are a combination of both unverified responses and objections then the 45-day period does not start as the statute setting forth the time limit requires verification of hybrid responses. (*Gold & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 131, 136.)

Here, Alta Vista served verified responses via email on March 30, 2026, making Plaintiffs' deadline to file the instant motion May 18, 2026. Thus, the motion was timely filed on May 18, 2026.

c. SROG Nos. 28 and 29

These SROGs seek the identities of other Alta Vista residents and their responsible parties from December 13, 2023, through December 25, 2023, the 13-day period that Decedent was admitted to Alta Vista.

Alta Vista claims this issue is now moot because Plaintiff added Dr. Matar as a defendant for terminating the Eliquis order for Decedent. This argument is meritless. Adding Dr. Matar does not extinguish Plaintiffs' allegations of understaffing, which is relevant to the Elder Abuse and negligence claims.

The disclosure of the names and addresses of potential witnesses is a routine and essential part of pretrial discovery. (*Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1249-1250.) "[A] percipient witness's willingness to participate in civil discovery has never been considered relevant – witnesses may be compelled to appear and testify whether they want to or not." 9*Id.* at 1251-1252.) Courts have prevented the release of witness contact information only under extreme circumstances. (*Planned Parenthood Golden Gate v. Superior Court* (2000) 83 Cal.App.4th 347.) There is no blanket constitutional protection to the witness contact information Plaintiffs seek. Indeed, while contact information is personal, it "is not particularly sensitive, as it is merely contact information, not medical or financial details, political affiliations, sexual relationships, or personnel information. This is basic civil discovery. These individuals have been identified by [Defendant] as witnesses. Nothing could be more ordinary in discovery than finding out the location of identified witnesses so that they may be contacted and additional investigation performed." (*Puerto, supra*, 159 Cal.App.4th at 1242.) Thus, the information Plaintiffs seek is relevant.

HIPAA and CMIA. HIPAA provisions address information that relates to past, future, or present medical healthcare. California also takes after HIPAA in prohibiting a healthcare provider from disclosing "medical information regarding a patient...without first obtaining an authorization..." (Civil Code § 56.10, subd. (a); Health & Saf. Code § 130301, subds. (a) and (d).) **A hospital does not violate HIPAA or CMIA by disclosing patient demographic or identifying information because such information is not medical.** (*Eisenhower Medical Center v. Superior Court* (2014) 226 Cal.App.4th 430 at 434 (emphasis added).) Under HIPAA, a covered entity may disclose protected health information during judicial or administrative proceedings in response to an order of a court or administrative tribunal. (See 45 C.F.R. § 164.512, subd. (d)(1)(i).) Likewise, Civil Code section 56.10 provides that a provider of health

care shall disclose medical information if the disclosure is compelled by a court pursuant to an order of that court.

Privacy. Article 1 of the California Constitution protects the right to privacy. However, the right to privacy is not absolute and even private information can be disclosed in some circumstances. The court must carefully balance the right of privacy against the need of discovery. (*Britt v. Superior Court* (1978) 20 Cal.3d 844, 855-856.) How compelling the discovery need must be will depend on the importance of the privacy interest involved. (*Davies v. Superior Court* 91984) 1412, 1432.) Personal information can be ordered disclosed only if the information is directly relevant and essential to a fair resolution of the action. (*Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1431-1432.)

Medical records are protected by the right of privacy. (*John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1198.) Medical information involves a patient's medical history, mental or physical condition, or treatment combined with individually identifiable information. (*Eisenhower Medical Center, supra*, 226 Cal.App.4th at 434, 436 [the mere fact a person is or was a patient is not accorded with the same level of privacy as more specific information about his medical history].) Individually identifiable information involves the patient's name, address, electronic mail address, telephone number, social security number, or other information that, alone or in combination with other publicly available information, reveals the individual's identity. (*Id.* at 434-435, 437.)

Here, the information sought seeks only the contact information of the residents, their responsible party and their contact information. Because the SROGs do not seek a patient's medical condition or history in combination with individually identifiable information, it is not medical information that is protected by the right of privacy. (*Eisenhower Medical Center, supra*, 226 Cal.App.4th at 434-437; *John B., supra*, 38 Cal.4th at 1198.) To further preserve privacy, Defendant can provide notice to the residents and the responsible parties to either opt in or opt out of agreeing to provide their contact information to Plaintiffs.

Accordingly, the Court **GRANTS** the motion.

d. RFP 11

This request seeks "[a]ll quality assurance, quality improvement, peer review, or audit documents relating to medication administration errors involving Eliquis or anticoagulants during" Decedent's care while admitted at Alta Vista.

Alta Vista objects, arguing lack of relevance and the information is admissible under Evidence Code sections 1151 and 1157.

The documents sought are clearly relevant. Information regarding the administration of medication involving Eliquis or anticoagulants during Decedent's stay at Alta Vista goes to Plaintiffs' claims of abuse and neglect. Thus, there is good cause to produce the documents.

Evidence Code section 1157, subdivision (a), provides that the proceedings and records of hospital staff committees “having the responsibility of evaluation and improvement of the quality of care rendered” are not subject to discovery. “The medical staff immunity described in section 1157 extends to, first, the proceedings, and second, the records of the described staff committees. It does not embrace the files of the hospital administration (as distinguished from staff).” (*Matchett v. Superior Court* (1974) 40 Cal.App.3d 623, 628.) “[S]ection 1157 does not shield from discovery administrative activities which, while related to, are independent of the investigative and evaluative activities of medical staff committees.” (*Santa Rosa Memorial Hospital v. Superior Court* (1985) 174 Cal.App.3d 711, 726.) Considering the liberality in allowing discovery, it is the burden of the party claiming immunity to establish that the privilege applies. (*Id.* at 727.)

Here, section 1157 is inapplicable considering the holding in *Santa Rose Memorial Hospital, supra*, 174 Cal.App.3d at 726.) The party claiming immunity under section 1157 has the burden of demonstrating why the information claimed to be immune should be deemed a record or proceeding of a medical staff. (*Id.* at 727.) Defendant failed to meet its burden to show this privilege applies given Defendant merely cites to legal authority but fails to provide the factual foundation for applicability. (See opp., pg. 3:1-pg. 4:10.) Moreover, Alta Vista failed to produce a privilege log.

Evidence Code section 1151 provides, “When, after the occurrence of an event, remedial or precautionary measures are taken, which, if taken previously, would have tended to make the event less likely to occur, evidence of such subsequent measures is inadmissible to prove negligence or culpable conduct in connection with the event.” Thus, by its express terms, section 1151 addresses only the issue of admissibility at trial, not discoverability of that sought. Subsequent remedial measures are not a privilege but rather a codified limited admissibility prohibition. It is inapplicable to discovery. The motion as is granted s to RFP No. 11.